Clackamas County Court

STATE OF OREGON
CLACKAMAS COUNTY COURTS
FILED

2024 MAY 28 PM 1:04

ENTERED

MAY 29 2024

By: EMV

Tyler Allen Lofall
6880 NW 271st Ave
Hillsboro, OR 97124
Email: tyleralofall@gmail.com
Phone: (386) 262-3322

CASE NUMBERS
TYLER ALLEN LOFALL vs.
THE STATE OF OREGON at el
3 : 24 - CV - 838 - SB

Verified Correct Copy of Original 5/30/2024.

UNITED STATES DISTRICT COURT

DISTRICT OF OREGON

PORTLAND DIVISION

TYLER A LOFALL	CLACKAMAS COUNTY Case No.: 22CV39627
Plaintiff(s),	DISTRICT OF OREGON TBD
v.	Notice of Removal to Federal Court
WEST LINN POLICE DEPARTMENT, CATLIN BLYTH AND DANA GUNNARSON,	
Defendant(s).	

To: The Judges of the United States District Court for the District of Oregon, and the Clerk of the Clackamas County Circuit Court:

Plaintiff, TYLER ALLEN LOFALL, hereby removes the above-captioned action from the Clackamas County Circuit Court to the United States District Court for the District of Oregon, pursuant to 28 U.S.C. §§ 1331, 1443, and 1446, and states as follows:

22CV39627
NO
Notice
18079038

Verified Correct Copy of Original 5/30/2024.

1. State Court Action

Plaintiff Tyler Allen Lofall commenced an action in the Clackamas County Circuit Court, Case No. 22CV39627, by filing a Complaint against Defendants. A copy of the Complaint and Motion for Summary Judgment, process, and orders served upon Defendants in the state court action are attached hereto as Complaint B. and E2.*.

2. Grounds for Removal

This action is removable under 28 U.S.C. § 1443 because the United States District Court has jurisdiction to address civil rights violations. This case involves claims arising under the Constitution, laws, or treaties of the United States, specifically:

a. **Violation of Fourth Amendment Rights**: Plaintiff alleges false arrest and malicious prosecution by Defendants under 42 U.S.C. § 1983.

b. **Violation of Fourteenth Amendment Rights**: Plaintiff alleges due process violations and denial of equal protection under the law under 42 U.S.C. § 1983.

c. **Denial of Fair Trial**: Plaintiff alleges the suppression of exculpatory evidence and other Brady violations under 42 U.S.C. § 1983.

d. **Judicial and Prosecutorial Misconduct**: Plaintiff alleges that appointed counsel colluded with the DA and Judge, manipulating court proceedings and lying in open court on June 10th, 2022, to claim that Plaintiff had COVID, thus undermining the Plaintiff's right to a fair trial.

Verified Correct Copy of Original 5/30/2024.

e. **Seventh Amendment Violation**: Plaintiff alleges that he was denied his right to a trial in his civil case, which resulted in the loss of his Assignment of Benefits (AOB). Despite the false arrest, Plaintiff never saw trial and was instead countersued.

f. **Systemic Bias and Corruption**: Plaintiff provides evidence from the transcripts of June 10th and June 24th, 2022, demonstrating that the state judiciary and prosecution have engaged in deliberate and coordinated efforts to harm the Plaintiff, depriving him of his constitutional rights. The state's own witness called the DA a liar on the record. Further, the police officers involved have lied and leveraged the custody of someone's children to obtain false testimony against Mr. Lofall. Mr. Lofall is not alone in stating this about Clackamas County, indicating a broader pattern of misconduct.

3. Federal Question and Civil Rights Jurisdiction

The above claims arise under the Constitution and laws of the United States, presenting federal questions pursuant to 28 U.S.C. § 1331, and qualify for removal under 28 U.S.C. § 1443 as they involve the denial of rights under laws providing for equal civil rights.

4. Timeliness of Removal

While this Notice of Removal is not within the typical 30-day window, the delay is due to procedural manipulation and misconduct by the defendants over the past 18 months. Given the new evidence of judicial and prosecutorial misconduct, removal is essential to ensure a fair trial.

5. Copies of State Court Papers

Verified Correct Copy of Original 5/30/2024.

True and correct copies of all process, pleadings, and orders served upon Defendants in this action are attached hereto as Exhibit B, in compliance with 28 U.S.C. § 1446(a).

6. Notice to State Court and Adverse Parties

Pursuant to 28 U.S.C. § 1446(d), written notice of the filing of this Notice of Removal is being promptly given to all adverse parties and a copy of this Notice is being filed with the Clerk of the Clackamas County Circuit Court.

7. Request for Stay of State Court Proceedings

Plaintiff requests that the United States District Court for the District of Oregon stay the state court proceedings pending the outcome of this Notice of Removal due to the imminent trial and the procedural misconduct observed.

WHEREFORE, Plaintiff, TYLER ALLEN LOFALL, respectfully requests that this Court take jurisdiction over this matter, address the substantial evidence of judicial and prosecutorial misconduct, and grant any other relief deemed just and proper.

Dated: May 20, 2024

Respectfully submitted,

s/Tyler Allen Lofall

Tyler Allen Lofall
6880 NW 271st Ave
Hillsboro, OR 97124
Email: tyleralofall@gmail.com
Phone: (386) 262-3322

Verified Correct Copy of Original 5/30/2024.

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing Notice of Removal was served upon all parties to this action on this 18th day of May, 2024, via Email upon

Dave Lewis <dlewis@cisoregon.org>,

Melanie Webb <MWebb@cisoregon.org>,

Jon Stouffer <jstouffer@cisoregon.org>,

William Stabler <wstabler@cisoregon.org>,

Raechelle Ottosen <rottosen@cisoregon.org>.

A minor amendment was made on May 20th and re sent to them again. Regarding statute 1441, and the entire packet has been submitted via US Mail to the District Court, Portland Division May 20th 2024.

s/Tyler Allen Lofall

Tyler Allen Lofall
6880 NW 271st Ave
Hillsboro, OR 97124
Email: tyleralofall@gmail.com
Phone: (386) 262-3322

AO 398 (Rev. 01/09) Notice of a Lawsuit and Request to Waive Service of a Summons

Verified Correct Copy of Original 5/30/2024.

UNITED STATES DISTRICT COURT

for the

DISTRICT OF OREGON
PORTLAND DIVISION

Tyler A Lofall *Plaintiff* v. The State of OREGON at el *Defendant*	)	Civil Action No.

NOTICE OF A LAWSUIT AND REQUEST TO WAIVE SERVICE OF A SUMMONS

To: Clackamas County : 807 Main St, Oregon City, Oregon, 97045

(if the defendant is a corporation, partnership, or association - an officer or agent authorized to receive service)

Why are you getting this?

A lawsuit has been filed against you, or the entity you represent, in this court under the number shown above.

A copy of the complaint is attached.

Specific Claims against Clackamas County of COUNTY GOV: MONELL CLAIM 42 USC 1983: Malicious Prosecution, Conspiracy to Deprive Civil Rights, Unlawful Detention, Failure to Train, Failure to Protect, Destruction of Property/Claim Rights, Denial of Equal Protection

Evidence of Interest Includes but is not Limited to: LACK OF ACTION SEE DUTIES

This is not a summons, or an official notice from the court. It is a request that, to avoid expenses, you waive formal service of a summons by signing and returning the enclosed waiver. To avoid these expenses, you must return the signed waiver within 30 days from the date shown below, which is the date this notice was sent. Two copies of the waiver form are enclosed, along with a stamped, self-addressed envelope or other prepaid means for returning one copy. You may keep the other copy.

Verified Correct Copy of Original 5/30/2024.

What happens next?

If you return the signed waiver, I will file it with the court. The action will then proceed as if you had been served on the date the waiver is filed, but no summons will be served on you and you will have 60 days from the date this notice is sent (see the date below) to answer the complaint (or 90 days if this notice is sent to you outside any judicial district of the United States).

If you do not return the signed waiver within the time indicated, I will arrange to have the summons and complaint served on you. And I will ask the court to require you, or the entity you represent, to pay the expenses of making service.

Please read the enclosed statement about the duty to avoid unnecessary expenses. I certify that this request is being sent to you on the date below.

Date: **MAY 15th 2024** s/ Tyler A. Lofall

TYLER ALLEN LOFALL
6880 NW 271st Ave
Hillsboro, OR 97124

tyleralofall@gmail.com

(386) 262 - 3322

AO 398 (Rev. 01/09) Notice of a Lawsuit and Request to Waive Service of a Summons

Verified Correct Copy of Original 5/30/2024.

UNITED STATES DISTRICT COURT

for the

DISTRICT OF OREGON
PORTLAND DIVISION

Tyler A Lofall *Plaintiff* v. The State of OREGON at el *Defendant*	)	Civil Action No.

NOTICE OF A LAWSUIT AND REQUEST TO WAIVE SERVICE OF A SUMMONS

To : Clackamas County : 807 Main St, Oregon City, Oregon, 97045

(if the defendant is a corporation, partnership, or association - an officer or agent authorized to receive service)

Why are you getting this?

A lawsuit has been filed against you, or the entity you represent, in this court under the number shown above.

A copy of the complaint is attached.

Specific Claims against Clackamas County of COUNTY GOV: MONELL CLAIM 42 USC 1983: Malicious Prosecution, Conspiracy to Deprive Civil Rights, Unlawful Detention, Failure to Train, Failure to Protect, Destruction of Property/Claim Rights, Denial of Equal Protection

Evidence of Interest Includes but is not Limited to: LACK OF ACTION SEE DUTIES

This is not a summons, or an official notice from the court. It is a request that, to avoid expenses, you waive formal service of a summons by signing and returning the enclosed waiver. To avoid these expenses, you must return the signed waiver within 30 days from the date shown below, which is the date this notice was sent. Two copies of the waiver form are enclosed, along with a stamped, self-addressed envelope or other prepaid means for returning one copy. You may keep the other copy.

Verified Correct Copy of Original 5/30/2024.

What happens next?

If you return the signed waiver, I will file it with the court. The action will then proceed as if you had been served on the date the waiver is filed, but no summons will be served on you and you will have 60 days from the date this notice is sent (see the date below) to answer the complaint (or 90 days if this notice is sent to you outside any judicial district of the United States).

If you do not return the signed waiver within the time indicated, I will arrange to have the summons and complaint served on you. And I will ask the court to require you, or the entity you represent, to pay the expenses of making service.

Please read the enclosed statement about the duty to avoid unnecessary expenses. I certify that this request is being sent to you on the date below.

Date: **MAY 15th 2024** s/ Tyler A. Lofall

TYLER ALLEN LOFALL
6880 NW 271st Ave
Hillsboro, OR 97124

tyleralofall@gmail.com

(386) 262 - 3322